

3.

CASE #	CASE NAME	HEARING NAME
CVPS2406355	ZENERGY CAPITAL LLC VS PALM SPRINGS CEMETERY DISTRICT	DEMURRER ON 1ST AMENDED COMPLAINT FOR FRAUD OF ZENERGY CAPITAL LLC PALM SPRINGS CEMETERY DISTRICT AND KATHLEEN JURASKY DEMURRER TO FIRST AMENDED COMPLAINT

Tentative Ruling: A demurrer must be filed within the time period of an answer. (Code Civ. Pro., § 430.40.) The parties fight over the declaration filed 2/10/26 for an automatic extension. Even assuming arguendo that the declaration is invalid, the court has discretion to consider an untimely demurrer. (*Jackson v. Doe* (2011) 192 Cal.App.4th 742, 750.) The court chooses to hear the demurrer on the merits.

A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

Government Claims Act:

Under the Government Claims Act (the “Act”), a plaintiff bringing suit for monetary damages against a public entity or employees must first present a claim to the public entity (“government claim”) which must be acted upon or deemed rejected by the public entity. (Gov. Code §§ 945.4, 950.2, 950.6(a).) It is an element of a cause of action against a public entity. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 374.) The purpose is to provide sufficient information to the public entity to enable it to adequately investigate claims and settle, if appropriate, without the expense of litigation. (*Ibid.*) It is required irrespective of the public entity’s actual knowledge of the circumstances. (*Ibid.*) A plaintiff must allege compliance, or an exception or excuse for not compliance exists. (*Id.*)

The claim must be filed within 6 months of the accrual of the cause of action, or with leave to file a late claim, no later than one year. (Gov. Code, §§ 911.2, 911.4.) If a plaintiff fails to file a government claim within the 6 month period, he or she may apply to the public entity for permission to file a late claim. (Gov. Code, § 911.4.) Such an application must be presented within a reasonable time, and not later than one year after the accrual of the cause of action. (Gov. Code, § 911.4(b).) If the claim against the public entity is barred, any claims against a public employee for injuries caused within the scope of employment are also barred. (Gov. Code, § 950.2.) Failure to plead compliance with the claims statute subjects the complaint to a demurrer. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239.)

Here, there is no allegation of compliance. Plaintiff solely argues that Defendant waived this by failing to raise this in an earlier demurrer. However, failure to state facts sufficient to constitute a cause of action is not subject to waiver. (Code Civ. Proc. § 430.080(a).) Plaintiff’s sole citation to Code of Civil Procedure section 430.41(b) is inapplicable because by its own terms, it only applies if there was a demurrer previously sustained. There is no prior demurrer.

Governmental Liability:

“Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions.” (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.) Unless provided by statute, a public entity is not liable for an injury. (Govt. Code § 815(a).) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his or her employment if the act or omission would have given rise to a cause of action against the employee, unless the employee is immune. (*Id.* at § 815.2.) There is no common law tort liability for public entities—only statutory. (*Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442.) To state a cause of action against a government entity, every fact essential to the existence of statutory liability must be pled with particularity. (See *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

1st Cause of Action Conspiracy to Fraudulently Discharge Waste:

Conspiracy is not a cause of action, rather, it is a form of vicarious liability. (*Patrick v. Alacer* (2008) 167 Cal.App.4th 995, 1016 n.11.) A conspiracy only requires an express or tacit agreement to commit a civil wrong or tort; that renders all participants liable for damages. (*Navarrete v. Meyer* (2015) 237 Cal.App.4th 1276, 1293.) As long as two or more persons agree to the wrongful act, they are held liable whether or not each individual actually committed the tort. (*Ibid.*)

To the extent that it is conspiracy to commit fraud, Plaintiff fails to plead any facts demonstrating fraud. The elements of fraud are (1) misrepresentation of a material fact (consisting of a false representation, concealment or non-disclosure); (2) knowledge of the falsity (i.e., scienter); (3) intent to deceive and induce reliance; (4) justifiable and actual reliance on the misrepresentation; and (5) resulting damage. (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 173.) Fraud actions are subject to strict requirements of particularity in pleading. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216.) A plaintiff must allege what was said, by whom, in what manner (i.e. oral or in writing), when, and, in the case of a corporate defendant, under what authority to bind the corporation. (*West v. JP Morgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 793.) The claim is not pled with any specificity. Furthermore, the claim is subject to a three year statute of limitations upon discovery. (Code Civ. Proc. § 338(d).) Plaintiff admits that testing showed groundwater contamination between 1991 and 1993. (FAC ¶23.)

To the extent that it is harm to the property, the statute of limitations is three years. (Code Civ. Proc. § 338(b).) For the same reasons, the claim is also barred under harm to the property.

2nd Cause of Action Fraud & Unjust Enrichment:

The claim is based on Cemetery District fraudulent inducing Cathedral City to purchase the property without properly closing the landfill. (FAC ¶32.) However, as RJN, Ex. A. shows, Plaintiff is not a party to the sale. Thus, it is unclear how Cemetery District committed fraud against Plaintiff.

To the extent the claim is based on unjust enrichment, there is no cause of action for unjust enrichment. (*City of Oakland v. Oakland Raiders* (2022) 83 Cal.App.5th 458, 477.) “Whether termed unjust enrichment, quasi-contract, or quantum meruit, the equitable remedy of restitution when unjust enrichment has occurred ‘is an obligation (not

a true contract [citation]) created by the law without regard to the intention of the parties' ” (*Ibid.*)

8th Cause of Action Inverse Condemnation:

The California Constitution requires that just compensation be paid when private property is taken or damaged for public use. (California Constitution, Article 1, § 19; *Marshall v. Department of Water & Power* (1990) 219 Cal.App.3d 1124, 1138.) Inverse condemnation is brought by a property owner who contends that the government has taken or damaged his property. (*Boxer v. City of Beverly Hills* (2016) 246 Cal.App.4th 1212, 1218.) While in eminent domain actions brought by the government already establish a taking, in an inverse condemnation action, the property owner must establish that the public entity has taken or damaged his property, before deciding the issue of just compensation. (*Weiss v. People ex rel. Department of Transportation* (2018) 20 Cal.App.5th 1156, 1166-1167.) There are three types of takings: “(1) the property has been physically invaded in a tangible manner; (2) no physical invasion has occurred, but the property has been physically damaged; or (3) an intangible intrusion onto the property has occurred which has caused no damage to the property but places a burden on the property that is direct, substantial, and peculiar to the property itself.” (*Boxer*, supra, 246 Cal.App.4th at 1218.)

The elements of inverse condemnation are: (1) a public entity; (2) has taken or damaged the plaintiff’s property; and (3) for a public use. (*Shehyn v. Ventura County Public Works Agency* (2025) 108 Cal.App.5th 1254, 1259. The damage to the real property must be “ ‘substantially caused by an inherent risk presented by the deliberate design, construction, or maintenance of [a] public improvement.’ ” (*Ibid.*)

Here, the FAC is based on the allegation that the Cemetery District uses irrigation water and caused excess rainwater and irrigation water to flow to the east parcel. (FAC ¶¶74-76.) Plaintiff fails to allege how this constitutes a public improvement project, substantially participated in the operation of one, or was for public use.

10th Cause of Action Equitable Indemnity:

“Equitable indemnity ‘applies in cases in which one party pays a debt for which another is primarily liable and which in equity and good conscience should have been paid by the latter party.’ ” (*United Services Auto. Ass’n v. Alaska Ins. Co.* (2001) 94 Cal.App.4th 638, 644-645.) “Equitable indemnity principles govern the allocation of loss or damages among multiple tortfeasors whose liability for the underlying injury is joint and several. Such principles are designed, generally, to do equity among defendants who are legally responsible for an indivisible injury by providing a basis on which liability for damage will be borne by each joint tortfeasor ‘in direct proportion to [its] respective fault.’ ” (*Expressions at Rancho Niguel Assn. v. Ahmanson Development* (2001) 86 Cal.App.4th 1135, 1139-1140, citing *American Motorcycle Assn. v. Superior Court* (1978) 20 Cal.3d 578, 597-598.)

Here, there is no allegation that Plaintiff paid a debt or actually suffered a loss for which Cemetery District is liable for payment. Plaintiff alleges that only that if it is required to make “outlays” as a result of RWQCB order, Defendants should reimburse Plaintiff. (FAC ¶¶82.) That is premature as there is no actual payment Plaintiff has made.

11th Cause of Action Negligence:

Plaintiff dismissed this claim of 4/17/26.

Defendant's Request for Judicial Notice of Exhibit A and Exhibit B is GRANTED.

Defendant's Demurrer as to the 1st, 2nd, 8th and 10th Causes of Action SUSTAINED with leave to amend. Plaintiff to file an amended complaint within 20 days.

Defendant's Demurrer as to the 11th Cause of Action is MOOT.

Trial Setting Conference remains calendared for 11.18.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2503361	PATTERSON VS ANIMAL RESCUE BY RICK AND EVA INC.	PLAINTIFF HAILEY PATTERSON'S MOTION TO DEEM ADMISSIONS ADMITTED, SET ONE AGAINST DEFENDANT ANIMAL RESCUE BY RICK AND EVA INC.

Tentative Ruling: No tentative ruling, a hearing shall be conducted.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2503361	PATTERSON VS ANIMAL RESCUE BY RICK AND EVA INC.	PLAINTIFF HAILEY PATTERSON'S MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES, SET THREE; AND REQUEST FOR ORDER AWARDING MONETARY SANCTIONS AGAINST DEFENDANT ANIMAL RESCUE BY RICK AND EVA INC.

Tentative Ruling: No tentative ruling, a hearing shall be conducted.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2503361	PATTERSON VS ANIMAL RESCUE BY RICK AND EVA INC.	PLAINTIFF HAILEY PATTERSON'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE; AND REQUEST FOR ORDER AWARDING MONETARY SANCTIONS AGAINST DEFENDANT ANIMAL RESCUE BY RICK AND EVA INC.

Tentative Ruling: No tentative ruling, a hearing shall be conducted.